

**Tentative Rulings
February 3, 2025
Department 44
2:30 p.m.**

*****Important Notice re Probate Referee: Michael Howard has been appointed as an additional probate referee for Shasta County. Effective with orders issued on or after 11/25/2024, all even numbered matters will be assigned to Susan Jeffers, and all odd numbered matters will be assigned to Michael Howard. This can be left blank if you submit the proposed order before a case number has been assigned. Probate referee information can be contained from the website for the office of the State Controller.*****

*****The Tentative Rulings below are designed to eliminate unnecessary court appearances. If the Court grants a Petition and signs your order, it will be processed and placed in your will-call or deposited in the mail after Monday's calendar. If you wish to appear on your case, telephonic appearances are strongly encouraged utilizing CourtCall. Please schedule your appearance online for Department 44 at Courtcall.com or by calling 888-882-6878 (See CourtCall link under "General Information" on the Court's website). *****

CONSERVATORSHIPS

CONSERVATORSHIP OF LILLY ARNOLD

Case Number: 24PC-0032524

This matter is on calendar for confirmation of filing of the Proof of Service of Notice of Conservatee's Rights, Determination of Conservatee's Appropriate Level of Care Form, and Conservatorship Care Plan. The documents were filed on December 19, 2024, and are accepted by the Court. The Court confirms the Annual Review date of December 8, 2025. **No appearance is necessary on today's calendar.**

CONSERVATORSHIP OF AUSTIN DICK

Case Number: 24PC-0032571

This matter is on calendar for further proceedings on a Petition for Appointment of a Limited Conservator of the Person. The matter has been continued to today's date, as the Court Investigator has not provided a recommendation based on the lack of a report for the Regional Center, FNRC. The Court notes that the report from the Regional Center, required by Probate Code Section 1827.5 has not been submitted. **An appearance is necessary on today's calendar to address the status of the evaluation from FNRC.**

CONSERVATORSHIP OF HUNTER DICK

Case Number: 24PC-0032572

This matter is on calendar for further proceedings on a Petition for Appointment of a Limited

Conservator of the Person. The matter has been continued to today's date, as the Court Investigator has not provided a recommendation based on the lack of a report for the Regional Center, FNRC. The Court notes that the report from the Regional Center, required by Probate Code Section 1827.5 has not been submitted. **An appearance is necessary on today's calendar to address the status of the evaluation from FNRC.**

CONSERVATORSHIP OF ARGENT HALE

Case Number: 23PC-0032036

This matter is on calendar for hearing on the Final Account of the Conservator. The matter has been properly noticed with proof of service on file. No objections have been raised. The filing contains numerous defects. The starting balance must equal the value of the estate on the date of appointment, as stated in the Inventory and Appraisal. Here, the Inventory and Appraisal showed a beginning balance of \$343,007.75. Pursuant to Probate code Section 2620(b), the accounting is also required to include an accounting from the date of death to the present. Original statements are required to be lodged with the Court, as provided by Probate code Section 2620(c). The accounting does not include any accompanying request for its approval, nor a Petition for Distribution. No proposed order has been submitted. The matter is continued to **Monday, March 17, 2025, at 2:30 p.m. in Department 44** for further proceedings. An amended Account and Report is required that cures the above defects. Notice of Hearing is required to be timely served for the continued hearing date. **No appearance is necessary on today's calendar.**

CONSERVATORSHIP OF JORDAN KINKADE

Case Number: 24PC-0032556

This matter is on calendar for confirmation of filing of the Proof of Service of Notice of Conservatee's Rights, Determination of Conservatee's Appropriate Level of Care Form, and Conservatorship Care Plan. The documents were filed, with the exception of the Determination of Appropriate level of care form. The matter is continued to **Monday, March 17, 2025, at 2:30 p.m. in Department 44** for confirmation of filing of the Determination of Appropriate Level of Care form. The clerk is directed to mail a copy of today's minutes to the conservators. **No appearance is necessary on today's calendar.**

CONSERVATORSHIP OF DEMETRA KUTRAS

Case Number: 22PC-0031598

This matter is on calendar for confirmation of filing of the First Account. The First Account has been filed and is noticed for hearing on February 24, 2025. That date is confirmed. Today's hearing has been **VACATED**. **No appearance is necessary on today's calendar.**

CONS OF RACHEL LEWIS

Case Number: CVP04-0024117

This matter is on calendar for further proceedings regarding a Petition to Fix Residence. The Court has received information that a Petition to Appoint a guardian for the conservatee has been filed in Virginia. The matter is continued **Monday, April 7, 2025, at 2:30 p.m. in Department 44** for further proceedings. Upon confirmation that the guardianship has been granted in Virginia, this proceeding will be terminated. **No appearance is necessary on today's calendar.**

CONSERVATORSHIP OF SHELBY LONG

Case Number: 23PC-0032081

This matter is on calendar for confirmation of filing of the Inventory and Appraisal. A Partial Inventory and Appraisal #1 was filed on January 13, 2025, but is NOT accepted by the court. The Conservator is limited in what assets it can appraise, and it appears that the majority, if not all, of the assets listed require an appraisal by the probate referee (Probate code Sections 2610(c), 8901, and 8902). The conservator is required to have the inventory and appraisal completed by the probate referee. The matter is continued **Monday, April 14, 2025, at 2:30 p.m. in Department 44** for confirmation of filing of the Inventory and Appraisal. **No appearance is necessary on today's calendar.**

CONSERVATORSHIP OF SCOTT MCMILLAN

Case Number: 24PC-0032696

This matter is on calendar for review after transfer in from Tehama County. The Court has not yet received a report from the Court Investigator. The matter is continued **Monday, March 17, 2025, at 2:30 p.m. in Department 44**. **No appearance is necessary on today's calendar.**

CONSERVATORSHIP OF JORDAN RICO

Case Number: 24PC-0032701

This matter is on calendar for hearing on a Petition for appointment of a Limited Conservator of the Person. The matter has been properly noticed, with proof of service on file. Counsel has been appointed for the proposed Conservatee. No objections have been raised. The paperwork appears to be in order. The Court Investigator's report filed on December 11, 2024, has been reviewed and considered by the Court. The Court Investigator recommends granting the Petition. Absent an appearance and objection by the Public Defender, as noted below, the Petition will be **GRANTED**. A proposed order was submitted and will be executed by the Court. The matter is set for **Monday, April 14, 2025, at 2:30 p.m. in Department 44** for Confirmation of Filing of the Proof of Service of Notice of Conservatee's Rights (Probate Code Section 1830, Form GC-341), Determination of Conservatee's Appropriate Level of Care Form (Probate Code section 2352.5, Form GC-355), and the Conservatorship Care Plan (Local Rule 15.13, Form LF-PRB-100). The matter is set for Annual Review on **Monday, February 9, 2026, at 2:30 p.m. in Department 44**. **An appearance is necessary on today's calendar only if there is an objection from the Public Defender's office.**

CONS OF ELAINE THOMPSON

Case Number: CVPG98-0021576

This matter is on calendar for further proceedings regarding appointment of a successor conservator. A status report has been filed, indicating that additional time is needed before a Petition can be filed. The matter is continued to **Monday, August 4, 2025, at 2:30 p.m. in Department 44** for status of a Petition for Appointment of a successor conservator. **No appearance is necessary on today's calendar.**

CONSERVATORSHIP OF AMANDA VOLOVIK

Case Number: 24PC-0032539

This matter is on calendar for confirmation of filing of the Inventory and Appraisal and proof

of service of the Notice of Filing of the Inventory and Appraisal. The documents were filed on January 22, 2025, and are accepted by the Court. The Court confirms the Annual Review date of August 25, 2025. **No appearance is necessary on today's calendar.**

ESTATES

ESTATE OF LINDA BIRKLAND

Case Number: 24PB-0032328

This matter is on calendar for Confirmation of Filing the Inventory and Appraisal. The Inventory and Appraisal has not been filed. A Status Report has been filed, which indicates additional time is needed before the Inventory and Appraisal can be filed. The matter is continued to **Monday, April 7, 2025, at 2:30 p.m. in Department 44** for confirmation of filing the Inventory and Appraisal. **No appearance is necessary on today's calendar.**

ESTATE OF RUSSELL BUHAY

Case Number: 22PB-0031616

This matter is on calendar today to confirm the filing of Receipts and Petition for Discharge. Receipts have been filed. A Petition for Discharge has been submitted and executed by the court. Today's hearing is **VACATED**. The clerk is directed to close the file. **No appearance is necessary on today's calendar.**

ESTATE OF JAMES CALLAHAN

Case Number: 24PB-0032410

This matter is on calendar for hearing on the First and Final Report of Administrator and Petition for Final Distribution on Waiver of Account. The matter has been properly noticed, with proof of service on file. No objections have been raised. The paperwork appears to be in order. The Petition is **GRANTED**. A proposed order was submitted and will be executed by the Court. The matter is set for **Monday, April 28, 2025, at 2:30 p.m. in Department 44** for confirmation of filing of receipts and a Petition for Final Discharge. **No appearance is necessary on today's calendar.**

ESTATE OF RICHARD CASEY

Case Number: 23PB-0032064

This matter is on calendar for Confirmation of Filing the Inventory and Appraisal. The Inventory and Appraisal has not been filed. This matter is on calendar for Status of Administration. No Petition for Final Distribution has been filed. A Status Report has been filed; however, it has not been properly noticed. The report indicates additional time is needed before the Final Inventory and Appraisal can be filed and the administration closed. The matter is continued to **Monday, April 28, 2025, at 2:30 p.m. in Department 44** for confirmation of filing of the Final Inventory and Appraisal and for Status of Administration. If a Petition for Final Distribution cannot be filed prior to the next hearing date, the Court **ORDERS** the personal representative to timely file and serve a Status Report with proper Notice of Hearing in compliance with Probate code Sections 12200 et seq. Failure to do so may result in the issuance of an Order to Show Cause Re Monetary Sanctions of \$250.00 for failure to timely close the estate administration and failure to comply with the Court Order. **No appearance is necessary on today's calendar.**

ESTATE OF WILLIAM CHELLAND

Case Number: CVPB19-0030316

This matter is on calendar for Status of Administration. No Petition for Final Distribution has